

Daryab Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 February 2020 · Writ-C No. 2355 of 2020 · Writ-C No. 2355 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5; recovery notice stayed eight weeks; merits left open.**

HEADNOTE

A writ seeking to quash a recovery bill-cum-notice and to compel decision of a pending representation is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory alternative remedy. The consumer may approach the concerned authority within three weeks for a decision in accordance with law within four weeks; the recovery notice remains in abeyance for eight weeks; the Court expresses no opinion on merits.

FACTUAL SUMMARY

Daryab Singh filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery bill-cum-notice dated 12 September 2019 issued by the electricity department, and mandamus to decide his representation dated 16 September 2019, with a restraint on coercive recovery meanwhile. Counsel for the Electricity Department submitted that the petitioner had an alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner could not rebut that contention.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

The writ petition challenging a recovery bill-cum-notice is not entertained because a statutory alternative remedy is available under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the petitioner approaches the concerned authority within three weeks, the application is to be considered and decided in accordance with law within four weeks thereafter. The recovery notice/citation dated 12.09.2019 remains in abeyance for eight weeks. The Court expressed no opinion on the merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Division Bench declined to entertain the writ because the consumer had an alternative remedy under Clause 6.5 to ventilate the grievance against the recovery bill-cum-notice. ¶ 1

clause-6.5-statutory-remedy The Court treated Clause 6.5 as a statutory remedy whose availability was a reason not to entertain the writ, and directed the concerned authority to consider any approach made within three weeks on its own merits. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed instrument was a recovery bill-cum-notice dated 12.09.2019; the Court sent the billing/recovery grievance to the Clause 6.5 authority without deciding the correctness of the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY BILL-CUM-NOTICE DATED 12.09.2019

The Court expressly recorded that it had not expressed any opinion on the merits and that the authority shall consider the matter on its own merits. ¶ 1

